



US0D1092935S

(12) **United States Design Patent** (10) **Patent No.:** **US D1,092,935 S**
St. Peter et al. (45) **Date of Patent:** **** Sep. 16, 2025**

(54) **FOOTWEAR UPPER**

(71) Applicant: **Saucony, Inc.**, Waltham, MA (US)

(72) Inventors: **Aaron P. St. Peter**, Hampstead, NH (US); **Craig M. Giansiracusa**, Tewksbury, MA (US)

(73) Assignee: **Saucony, Inc.**, Waltham, MA (US)

(**) Term: **15 Years**

(21) Appl. No.: **29/908,453**

(22) Filed: **Jan. 12, 2024**

(51) **LOC (15) Cl.** **02-04**

(52) **U.S. Cl.**

USPC **D2/969**

(58) **Field of Classification Search**

USPC D2/896, 900, 902, 904, 906–908, D2/916–924, 925–945, 969–979

CPC A43B 1/00; A43B 1/10; A43B 1/12; A43B 1/14; A43B 3/00; A43B 3/10; A43B 3/12; A43B 3/14; A43B 5/00; A43B 5/001; A43B 5/002; A43B 5/003; A43B 5/007; A43B 5/008; A43B 5/02; A43B 5/06; A43B 5/10; A43B 5/12; A43B 5/14; A43B 13/00; A43B 13/02; A43B 13/023; A43B 13/026; A43B 13/04; A43B 13/14; A43B 13/141; A43B 13/18; A43B 13/181

See application file for complete search history.

(56) **References Cited**

U.S. PATENT DOCUMENTS

D315,054 S * 3/1991 Hatfield D2/969
5,243,772 A 9/1993 Francis et al.
D351,937 S * 11/1994 Hewett D2/969
D362,335 S 9/1995 Estefano
D377,414 S 1/1997 Hatfield
D480,548 S * 10/2003 Matis D2/969
D505,252 S * 5/2005 Belley D2/969
D563,657 S * 3/2008 Matis D2/969
D571,998 S * 7/2008 Mermet D2/969

D593,306 S 6/2009 St-Louis
D644,012 S * 8/2011 Akhidime D2/969
D646,471 S 10/2011 Mahoney
(Continued)

FOREIGN PATENT DOCUMENTS

CA 2847248 10/2011

OTHER PUBLICATIONS

https://www.saucony.com/en/triumph-21/195019440012.html?gad_source=1&gclid=EAlaIqobChM1m8Huk-OKgwMVUv7lChIdYAXcEAQYAIAABEgLZlfd_BwE&gclsrc=aw.ds, at least as early as Jan. 11, 2024.

(Continued)

Primary Examiner — Jonathan J Han

(74) *Attorney, Agent, or Firm* — Warner Norcross + Judd LLP

(57)

CLAIM

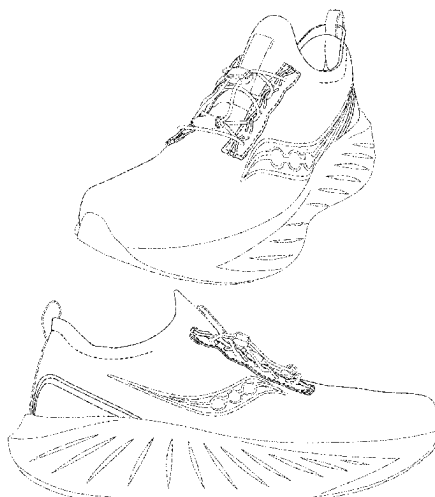
The ornamental design for a footwear upper as shown and described.

DESCRIPTION

FIG. 1 is a perspective view of a footwear upper embodying the new design;
FIG. 2 is a top view thereof;
FIG. 3 is a bottom view thereof;
FIG. 4 is a right side view thereof;
FIG. 5 is a left side view thereof;
FIG. 6 is a front view thereof; and,
FIG. 7 is a rear view thereof.

The figures show features in dash-dot-dot broken lines that form no part of the claimed design. Further, the dash-dot-dot broken lines immediately adjacent the solid line portions of the design form the boundary of the claimed design, with those dash-dot-dot broken lines forming no part of the claimed design. The evenly spaced dash-dash broken lines in the figures depict stitching, which forms part of the claimed design.

1 Claim, 7 Drawing Sheets



(56)

References Cited**U.S. PATENT DOCUMENTS**

D651,787	S	1/2012	Mahoney	
D659,976	S	5/2012	Mahoney	
D662,695	S *	7/2012	McVicker	D2/907
D668,437	S	10/2012	Mahoney	
D671,718	S *	12/2012	McVicker	D2/908
D671,727	S *	12/2012	Yi	D2/969
D711,088	S	8/2014	Kirschner	
D732,268	S	6/2015	Grenet et al.	
D737,040	S	8/2015	Pauk	
D795,553	S *	8/2017	Weddle	D2/969
D891,745	S *	8/2020	Han	D2/947
D1,020,216	S *	4/2024	Portzline	D2/969
D1,021,342	S *	4/2024	Monzo Tadeo	D2/907
D1,024,522	S *	4/2024	Therriault	D2/969
D1,026,444	S *	5/2024	Mahoney	D2/969
D1,033,853	S *	7/2024	Chen	D2/969
D1,033,854	S *	7/2024	Gao	D2/969
D1,043,083	S *	9/2024	Cobb	D2/969
D1,046,419	S *	10/2024	Chang	D2/969
D1,047,403	S *	10/2024	Chang	D2/969
D1,052,878	S *	12/2024	Engel	D2/969
D1,064,550	S *	3/2025	Mahoney	D2/969
D1,064,551	S *	3/2025	Therriault	D2/969
2011/0225852	A1 *	9/2011	Mahoney	A43B 13/146 36/30 R

OTHER PUBLICATIONS

https://www.amazon.com/s?k=saucony+triumph+20&hvadid=604541499760&hvdev=c&hvlocphy=9017518&hvnetw=g&hvqmt=e&hvrnd=3441274035754609803&hvtargid=kwd-1174965653759&hydadcr=7911_13471622&tag=googhydr-20&ref=pd_sl_6tpihyvuc4_e, at least as early as Jan. 11, 2024.

https://www.amazon.com/Saucony-Mens-Triumph-Running-Alloy/dp/B096FFPCPY/ref=asc_df_B096FFPCPY/?tag=hyprod-20

&linkCode=df0&hvadid=536500189636&hvpos=&hvnetw=g&hvrnd=3846571666576450602&hvpone=&hvptwo=&hvqmt=&hvdev=c&hvdvcmdl=&hvlocint=&hvlocphy=9017518&hvtargid=pla-1406826573971&mcid=492617e22fc03d34bb6af974f664bbb7&gclid=EAlaIQobChMI29vc_OOKgwMVTe7iCh10TgtNEAQYAyABEGKmdfD_BwE&th=1&psc=1, at least as early as Jan. 11, 2024.

https://www.amazon.com/Saucony-Triumph-Sneaker-Vapor-Black/dp/B09XZF2BDP/ref=asc_df_B09XZF2BDP/?tag=hyprod-20 &linkCode=df0&hvadid=693711477805&hvpos=&hvnetw=g&hvrnd=5617718144023632348&hvpone=&hvptwo=&hvqmt=&hvdev=c&hvdvcmdl=&hvlocint=&hvlocphy=9017518&hvtargid=pla-1967882852560&psc=1&mcid=f11c3804af6638d7a7f0e9ab2c91b577&gad_source=1&gclid=Cj0KCQjwexyxBhC7ARIsAC7dS38EZmEMKIDzgGh7hriVoMRzrNz_h-Q-kk9Pxb4X4v9gnsET5jqoHLcaAIS2EALw_wcB, at least as early as Jan. 11, 2024.

https://www.amazon.com/Saucony-Mens-Triumph-19-Running/dp/B096FGD6WM/ref=asc_df_B096FGD6WM/?tag=hyprod-20 &linkCode=df0&hvadid=693367376807&hvpos=&hvnetw=g&hvrnd=9477213017040350295&hvpone=&hvptwo=&hvqmt=&hvdev=c&hvdvcmdl=&hvlocint=&hvlocphy=9017518&hvtargid=pla-1410579745675&psc=1&mcid=7d4cbd3ad41633b698e22b3a7f6b37e4&gad_source=1&gclid=Cj0KCQjwexyxBhC7ARIsAC7dS3_n5DQ2GKVUY7F8qPiTyfxuKXxuQ6VBE_x3kpPJXQPoAUd4GFxAMn8aAuLnEALw_wcB, at least as early as Jan. 11, 2024.

https://www.efootwear.com/p-18075-saucony-triumph-18-mens-wide-ee-alloy-red-s20596-30.aspx?utm_source=google&utm_medium=cpc&adpos=&scid=scplp18075-18101-12%20WIDE%20EE&scintid=18075-18101-12%20WIDE%20EE&gad_source=1&gclid=Cj0KCQjwexyxBhC7ARIsAC7dS3_Je5QtbAZKRgo5AoG66BsN0ycuqQEuhULJonVxRov-TpgJC_kCZBgaAtq2EALw_wcB, at least as early as Jan. 11, 2024.

* cited by examiner

FIG. 1

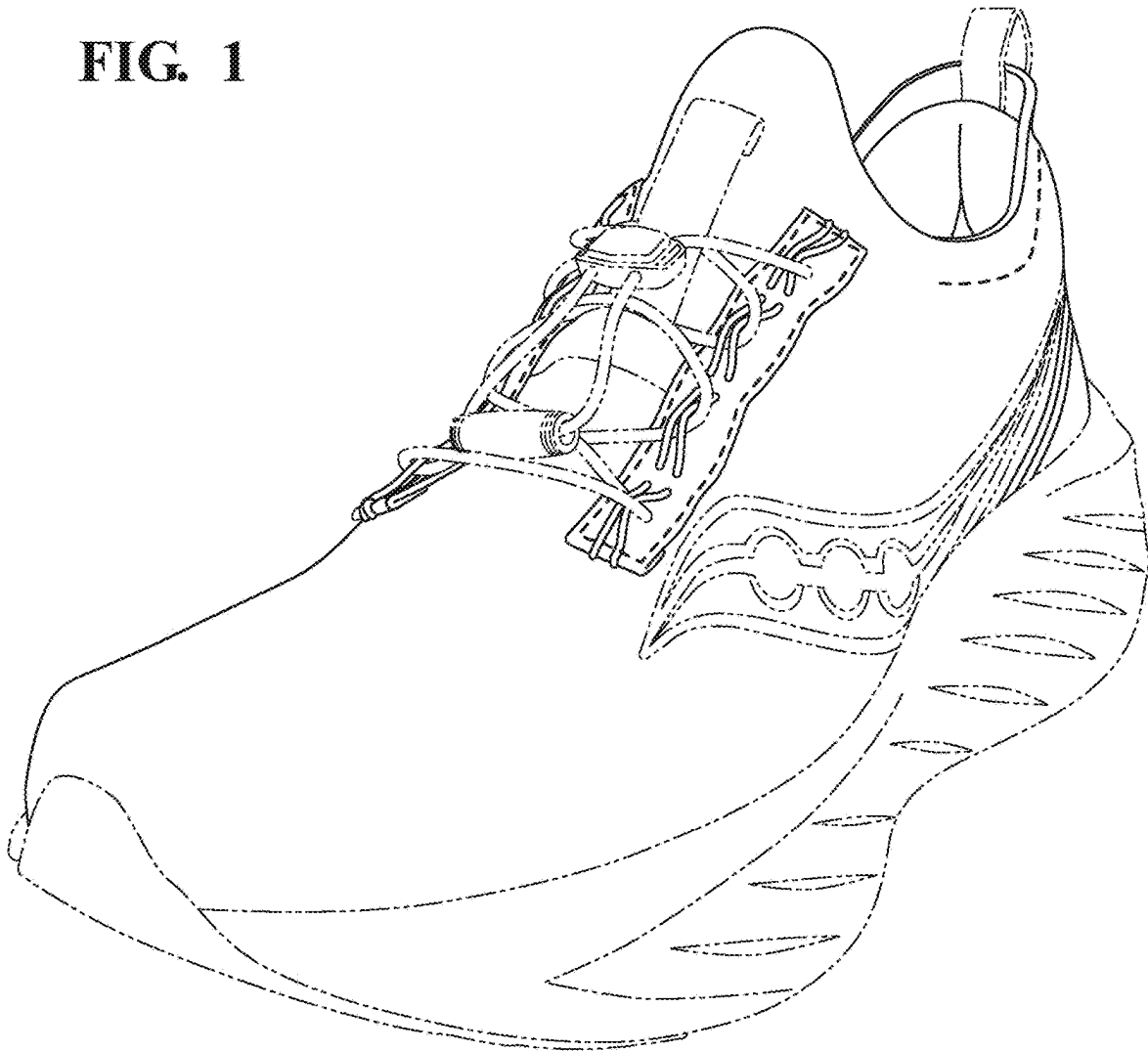


FIG. 2

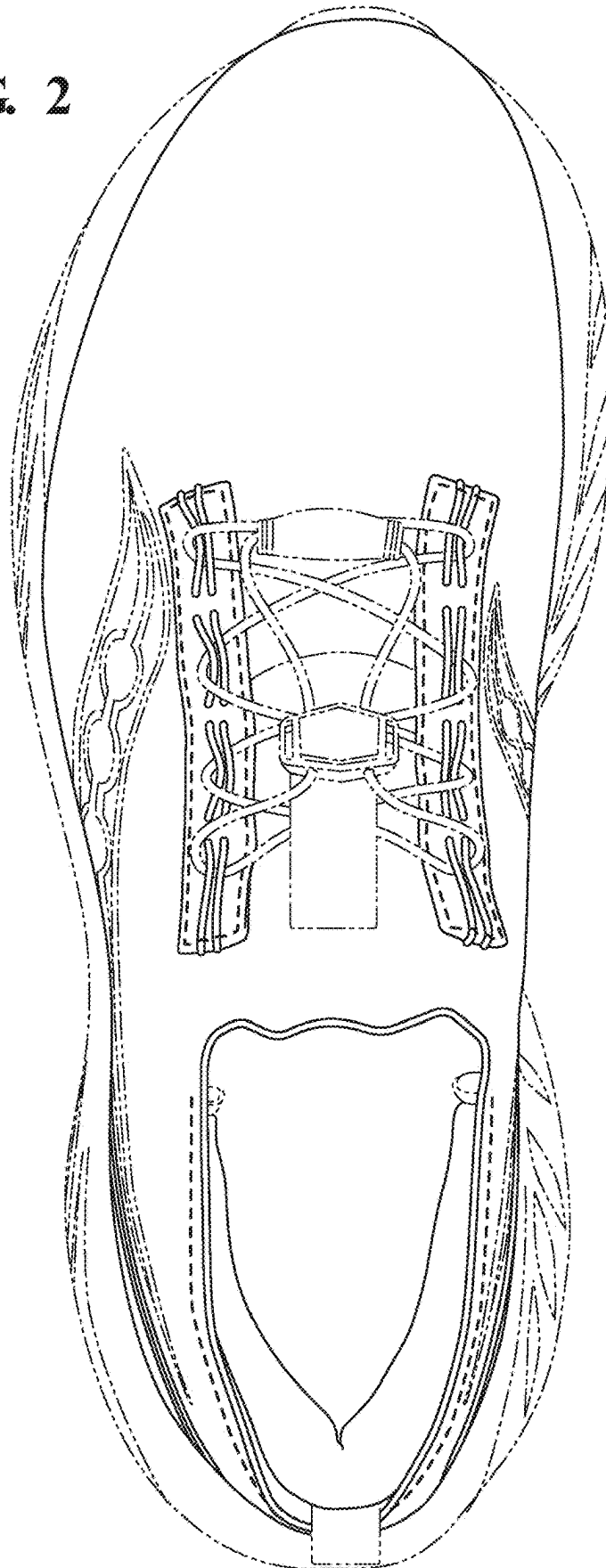
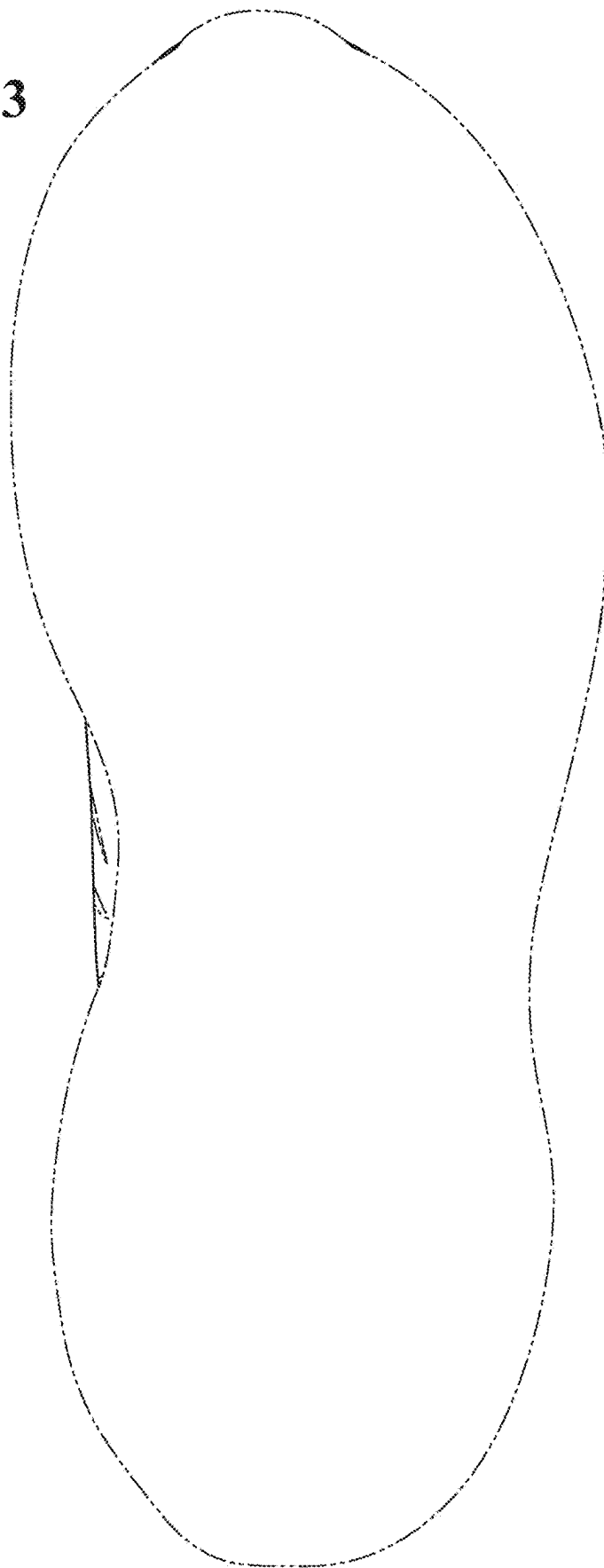


FIG. 3



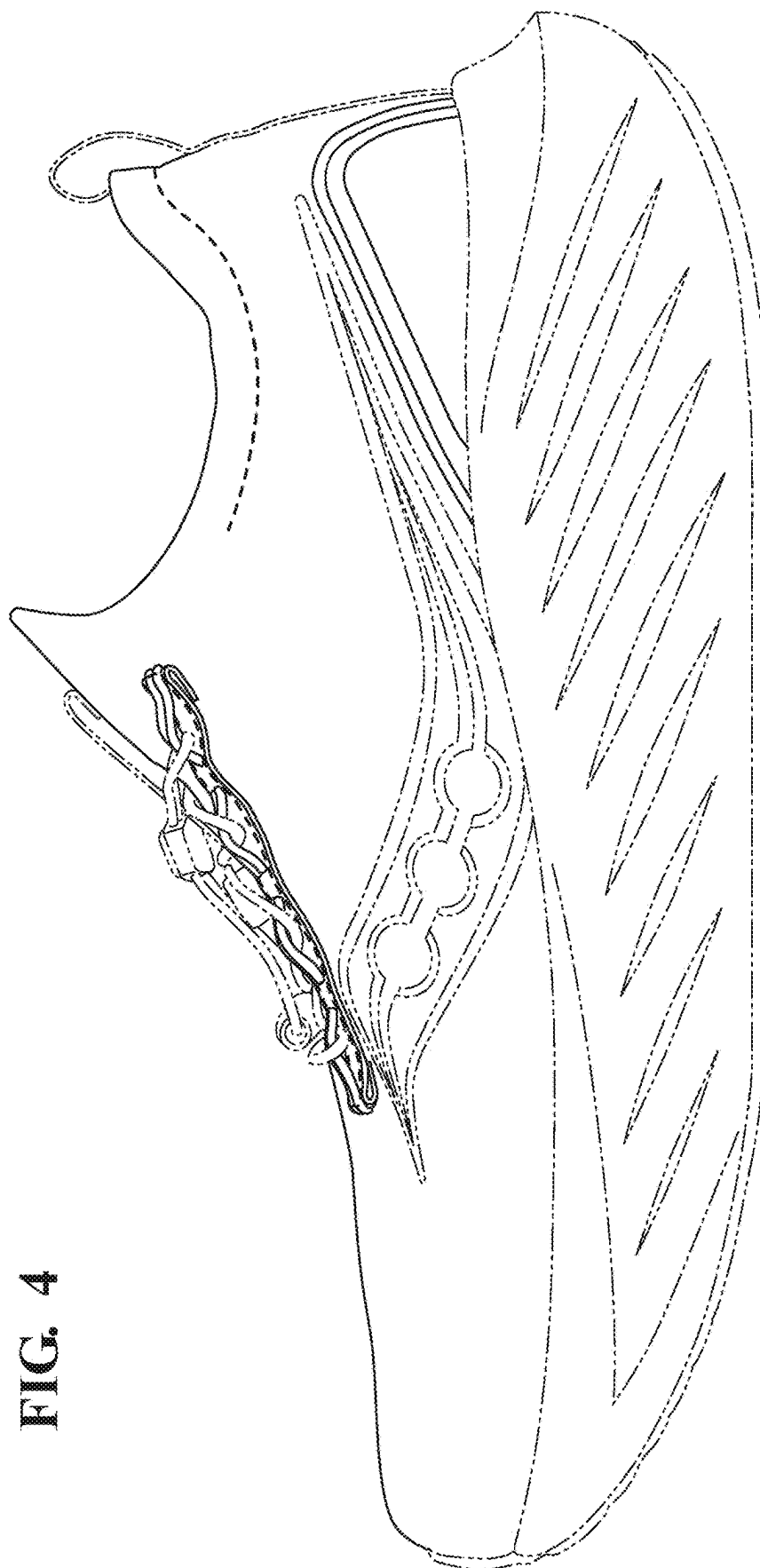
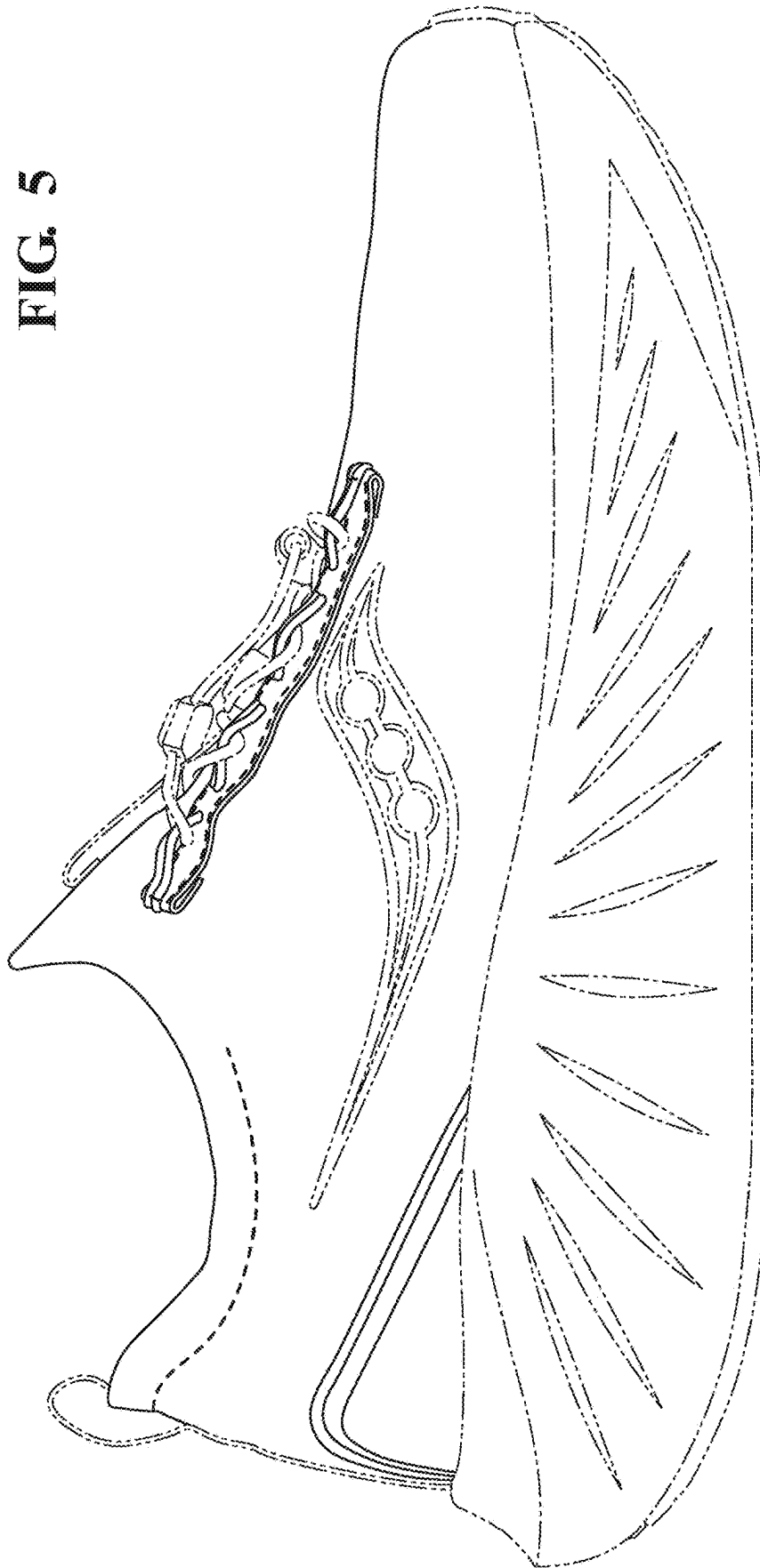


FIG. 4

FIG. 5



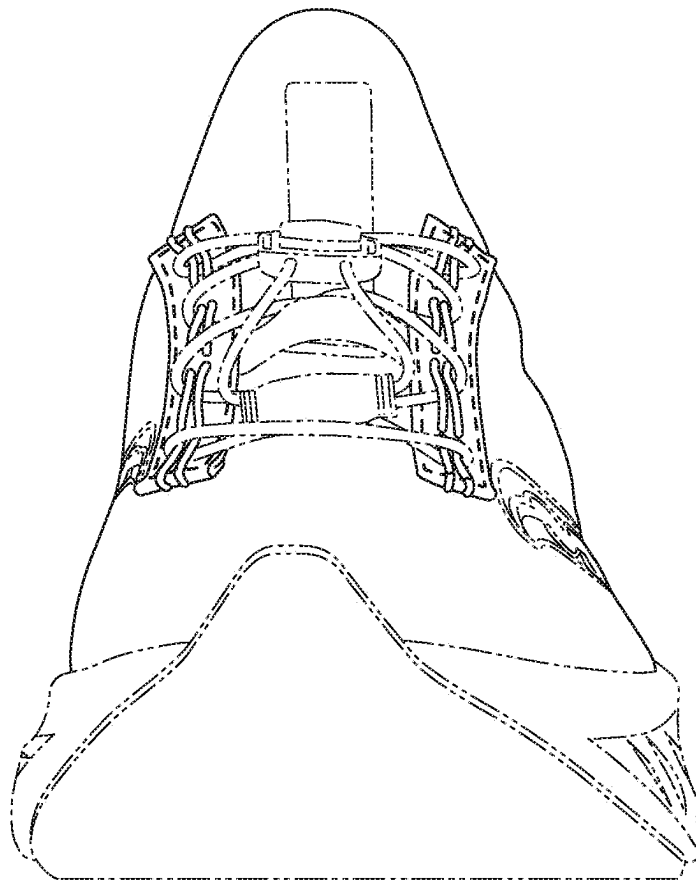


FIG. 6

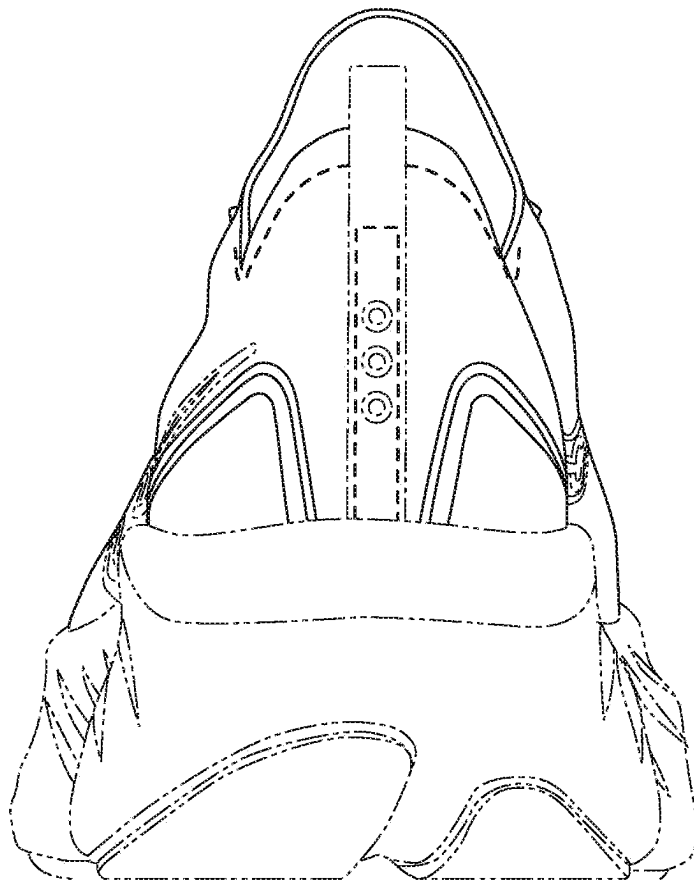


FIG. 7